

Thailand

Transfer Pricing Country Profile¹

October 2025

		SUMMARY	REFERENCE
The Arm's Length Principle			
1	Does your domestic transfer pricing framework ² make reference to the arm's length principle?	☒ Yes ☐ No	Section 71 bis, Paragraph 1 of the Revenue Code [LINK] [LINK] Ministerial Regulation No. 369 (B.E. 2563) dated 16 November 2020 [LINK] Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]
2	Does your domestic transfer pricing framework give the OECD Transfer Pricing Guidelines any role or status	☒ Yes ☐ No	Ministerial Regulation No. 369 (B.E. 2563) dated 16 November 2020 [LINK]

¹ Information in transfer pricing country profiles is provided directly by jurisdictions. By publishing the transfer pricing country profiles on the OECD website, the OECD does not certify the accurateness of the information provided therein. Importantly, transfer pricing country profiles published on the OECD website are made available to stakeholders for information purposes only, and are not intended to be used in substitution to a jurisdiction's legal instruments, jurisprudence, or administrative guidance or practice nor relied on as an accurate and complete description of domestic law.

² For purposes of transfer pricing country profiles, the term "domestic transfer pricing framework" refers to a jurisdiction's domestic legislation, regulations, administrative guidance or practice, jurisprudence or governing general principles in the jurisdiction.

	(e.g. legal binding effect, subsidiary application in the absence of domestic legislation, source of interpretation of domestic legislation and/or treaty provisions, other)?	Thailand does not formally accord legal binding status to the OECD Transfer Pricing Guidelines, but it recognises the OECD TPG as an important reference framework for transfer pricing.	Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]												
3	Does your domestic transfer pricing framework provide for a definition of related parties applicable for transfer pricing purposes? If so, please provide the definition contained under your domestic transfer pricing framework.	☒ Yes ☐ No A reference to a definition of related companies or juristic partnerships applicable for transfer pricing purpose is provided under Section 71 bis, Paragraph 2 of the Revenue Code. It should be noted that Section 71 bis, Paragraph 2 (3) of the Revenue Code has yet to enforced.	Section 71 bis, Paragraph 2 of the Revenue Code [LINK] [LINK]												
Transfer Pricing Methods															
4	Does your domestic transfer pricing framework provide for transfer pricing methods to be used in respect of transactions between related parties?	☒ Yes ☐ No If affirmative, please check those provided for in your legislation: <table border="1" data-bbox="678 914 1527 1083"> <thead> <tr> <th>CUP</th><th>Resale Price</th><th>Cost Plus</th><th>TNMM</th><th>Profit Split</th><th>Other (If so, please describe)</th></tr> </thead> <tbody> <tr> <td>☒</td><td>☒</td><td>☒</td><td>☒</td><td>☒</td><td>☒</td></tr> </tbody> </table> Thailand's transfer pricing framework accommodates alternative transfer pricing method under exceptional circumstances, provided the taxpayer justifies their necessity and appropriateness in line with arm's length principle. In such instances, the taxpayer must formally notify the Director-General of the Revenue Department in writing within the relevant accounting period, accompanied by a preliminary justification for the selected methodology.	CUP	Resale Price	Cost Plus	TNMM	Profit Split	Other (If so, please describe)	☒	☒	☒	☒	☒	☒	No.5 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]
CUP	Resale Price	Cost Plus	TNMM	Profit Split	Other (If so, please describe)										
☒	☒	☒	☒	☒	☒										

5	Which criterion is provided for in your domestic transfer pricing framework for the application of transfer pricing methods?	Please check all that apply: ☐ Hierarchy of methods ☒ Most appropriate method ☐ Other (if so, please explain)	No. 5 and No.6 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 LINK
6	Does your domestic transfer pricing framework contain specific guidance on commodity transactions?	☐ Yes ☒ For controlled transactions involving commodities, the guidance contained in paragraphs 2.18-2.22 of the TPG is followed. ☐ Domestic transfer pricing framework provides for the use of a specific method for controlled transactions involving commodities (if so, please explain) ☒ No	
Comparability Analysis			
7	Does your jurisdiction follow (or largely follow) the guidance on comparability analysis outlined in Chapter III of the TPG?	☒ Yes ☐ No	
8	Is there a preference in your jurisdiction for domestic comparables over foreign comparables?	☐ Yes ☒ No	

9	Does your domestic transfer pricing framework permit the use of secret comparables for transfer pricing assessment purposes?	☐ Yes ☒ No	
10	Does your domestic transfer pricing framework allow or require the use of an arm's length range and/or statistical measure (e.g. the interquartile range or other percentiles) for determining arm's length remuneration?	☒ Yes ☐ No Thailand employs the Interquartile Range (IQR) as a statistical benchmark measure under the arm's length principle, permitting adjustments to the most appropriate point based on case-specific analysis.	Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 LINK
11	Are comparability adjustments required under your domestic transfer pricing framework?	☒ Yes ☐ No	No.3 (2) and No. 4 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 LINK
Intangible Property			

12	Does your domestic transfer pricing framework contain guidance specific to the pricing of controlled transactions involving intangibles?	☒ Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VI of the TPG? ☒ Yes ☐ No (please provide further explanations below) ☐ No	No.10 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]
13	Are there any other rules outside your transfer pricing framework that are relevant for the pricing of controlled transactions involving intangibles?	☐ Yes ☒ No	
Hard-to-Value Intangibles³			
14	Does your domestic transfer pricing framework contain guidance specific to hard-to-value intangibles (HTVI)?⁴	☐ Yes. If so, does your domestic transfer pricing framework follow the guidance on HTVI in Chapter VI of the TPG? ☐ Yes ☐ No (please provide further explanations below) ☒ No Thailand's domestic legislation does not contain specific guidance on the hard-to-value intangibles (HTVI). As a source of interpretation, the TPG are used.	

³ Please note that questions in this section are imported from the HTVI questionnaire and integrated into this TPCP to centralise all jurisdiction-related transfer pricing information.

⁴ In the case of jurisdictions that do not apply the HTVI approach (i.e. they responded “no” to question 14), it is not necessary to respond to the remaining questions in the HTVI section and these questions will not be published as part of jurisdiction’s transfer pricing country profile.

Intra-group Services			
23	Does your domestic transfer pricing framework provide guidance specific to intra-group services transactions?	☒ Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VII of the TPG? ☒ Yes ☐ No (please provide further explanations below) ☐ No	No.9 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]
24	Does your domestic transfer pricing framework provide for or allow the application of a simplified approach for low value-adding intra-group services?	☐ Yes. If so, does it follow (largely follow) the low value-adding services approach in Chapter VII? ☐ Yes ☐ No (please provide further explanations below) ☒ No	
25	Are there any other rules outside your transfer pricing framework for pricing intragroup services?	☐ Yes ☒ No	

Financial Transactions			
26	Does your domestic transfer pricing framework provide guidance specific to financial transactions?	☒ Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter X of the TPG? ☐ Yes ☐ No (please provide further explanations below) ☒ No Thailand's domestic legislation does not contain specific guidance on financial transactions. As a source of interpretation, the TPG are used.	
27	Are there any other rules outside your transfer pricing framework that are relevant for the tax treatment of financial transactions? (e.g. whether your jurisdiction has implemented the measures in BEPS Action 4 to limit interest deductions and other financial payments or any similar rules)	☐ Yes ☒ No	

Cost Contribution Arrangements			
28	Does your jurisdiction allow cost contribution arrangements?	☒ Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VIII of the TPG? ☐ Yes ☒ No (please provide further explanations below) ☐ No	
		Thailand's transfer pricing framework does not explicitly restrict taxpayer from establishing Cost Contribution Arrangements (CCAs). However, such arrangements must adhere to the arm's length principle to ensure compliance with transfer pricing regulations."	
Transfer Pricing Documentation			
29	Does your domestic transfer pricing framework require the taxpayer to prepare transfer pricing documentation?	☒ Yes ☐ No If affirmative, please check all that apply: ☐ Master file consistent with Annex I to Chapter V of the TPG ☒ Local file consistent with Annex II to Chapter V of the TPG ☒ Country-by-country report consistent with Annex III to Chapter V of the TPG ☒ Specific transfer pricing returns (separate or annexed to the tax return) ☐ Other (specify):	Section 71 Ter of the Revenue Code [LINK] [LINK] Notification of Director-General of the Revenue Department on Income Tax No. 407 (B.E.2564) dated 30 September 2021 [LINK] Notification of Director-General of the Revenue Department on Income Tax No. 408 (B.E.2564) dated 30 September 2021 [LINK] Notification of Director-General of the Revenue Department Re: Information concerning Related Companies or Juristic Partnerships and the Total Value of Transactions between Them in Each Accounting Period dated 14 January 2021 [LINK] and date 18 January 2022 [LINK]
30	Please briefly explain the relevant requirements related to each transfer pricing documentation	1. The Disclosure Form, or Annual Reporting Form: a report that must be prepared by related companies or juristic partnerships	Section 71 Ter of the Revenue Code [LINK] [LINK]

	requirement (i.e. timing for preparation or submission, languages, etc.)	The form must follow the format prescribed by the Director-General and be submitted together with the tax return under Section 69, within 150 days from the end of the accounting period. This report serves to disclose key information, including: - Related companies or juristic partnerships operating in Thailand, and those not operating in Thailand. - Details of the value of controlled transactions with related companies or juristic partnerships operating in Thailand, and those not operating in Thailand. 2. Local File: It is required to prepare reports containing information about related companies or partnerships, including; - Information about the entity, including the nature of its business, the structure of its relationships with related companies or partnerships, explanations of any business restructuring, and descriptions of transfers of intangible assets received from or made to related companies or juristic partnerships during the accounting period. - Information on controlled transactions, including the types of controlled transactions, descriptions of such transactions, all related contracts, functional analysis covering functions, assets, and risks, financial information, pricing methods, and a list and description of comparable uncontrolled transactions. The information shall submit to the tax authorities in Thai, within 180 days from the date of notification by the Revenue Department for the first submission, and within 60 days for subsequent submissions. 3. Country-by-Country Report (CbC Report): Thailand has successfully completed its peer review and maintains compliance with internationally aligned transfer pricing standards. Under current regulations, multinational enterprise (MNE) groups with consolidated global revenue below THB 28 billion (a fixed monetary threshold) are exempt from Country-by-Country (CbC) reporting requirements.	Ministerial Regulation No. 370 (B.E. 2563) dated 6 November 2020 [LINK] Notification of Director-General of the Revenue Department on Income Tax No. 407 (B.E.2564) dated 30 September 2021 [LINK] Notification of Director-General of the Revenue Department on Income Tax No. 408 (B.E.2564) dated 30 September 2021 [LINK] Thailand's CbCR Local Guidance [LINK]
31	Does your domestic transfer pricing framework provide for specific transfer pricing penalties and/or compliance incentives regarding transfer pricing documentation?	☒ Yes ☐ No Failure to submit transfer pricing reports, documents, or evidence, or submitting transfer pricing reports, documents, or evidence that contain incomplete or	Section 35 Ter of the Revenue Code [LINK] [LINK]

		incorrect information without a reasonable cause, will be subject to a penalty of up to 200,000 Baht.	
32	Does your domestic transfer pricing framework provide for exemption from transfer pricing documentation obligations?	☒ Yes ☐ No 1. Disclosure Form: the annual filling of related party disclosure forms by companies will be exempted where their total revenue not exceeding THB 200 million in an accounting period. 2. Local File: the exemptions may apply in the following cases: - General exemption: if the entity has total revenue not exceeding THB 200 million - Specific exemption: The requirement to submit benchmarking study may be waived if: - o The entity has total revenue not exceeding THB 500 million, has no controlled transactions with related companies or juristic partnerships subject to different corporate income tax rates, has no controlled transactions with related companies or juristic partnerships incorporated abroad, and has no net operating losses carried forward from previous years used as tax deductions. - o The entity has entered into an advance pricing agreement (APA), only benchmarking study related to a covered transaction therein is waived. 3. Country-by-Country Report (CbCR): Thailand has passed the peer review and follows internationally aligned standards and procedures.	Section 71 Ter, Paragraphs 3 of the Revenue Code [LINK] [LINK] Ministerial Regulations No. 370 (B.E. 2563) dated 6 November 2020 [LINK] No.3 of the Notification of Director-General of the Revenue Department on Income Tax No. 407 (B.E.2564) dated 30 September 2021 [LINK] No. 5 of the Notification of Director-General of the Revenue Department on Income Tax No. 408 (B.E.2564) dated 30 September 2021 [LINK]

Administrative Approaches to Avoiding and Resolving Disputes			
33	Which mechanisms are available in your jurisdiction to prevent and/or resolve transfer pricing disputes?	Please check those that apply: ☐ Rulings ☐ Enhanced engagement or cooperative compliance programmes ☒ Advance Pricing Agreements (APA) ☐ Unilateral APAs ☒ Bilateral APAs ☐ Multilateral APAs ☐ International Compliance Assurance Programme (ICAP) ☒ Mutual Agreement Procedures ☐ Other (please specify):	Mutual Agreement Procedure Provision of Thailand's tax treaty network [LINK] Thailand's MLI Position concerning Mutual Agreement Procedure Provision [LINK] No. 13 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK] Guideline on APA Process [LINK] Mutual Agreement Procedure (MAP) Guideline [LINK] Thailand Dispute Resolution Country Profile
Simplified and Streamlined Approach for Baseline Marketing and Distribution Activities			
34	Does your domestic transfer pricing framework allow the application of the simplified and streamlined approach for baseline marketing and distribution activities in the relevant Annex of Chapter IV of the TPG?	☐ Yes ☐ No ☒ Other (please elaborate) Amount B is still under consideration.	

35	If your domestic transfer pricing framework allows the application of the simplified and streamlined approach, how is it implemented?	☐ In-scope tested parties resident within the jurisdiction can elect to apply the simplified and streamlined approach (i.e. safe harbour) ☐ In-scope tested parties resident within the jurisdiction are required to follow the simplified and streamlined approach for in-scope qualified transactions and tax administrations are allowed to impose the application of the simplified and streamlined approach to in-scope qualified transactions of tested parties resident within their jurisdiction (i.e. rule) ☒ N/A	
36	If your domestic transfer pricing framework allows the application of the simplified and streamlined approach, what is the operating expense to sales (OES) upper bound chosen by your jurisdiction regarding scoping criterion 13.b?	☐ 20% ☐ 30% ☐ Other (please specify) ☒ N/A	
37	Does your jurisdiction respect the outcome of the application of the simplified and streamlined approach by a covered jurisdiction in line with the Inclusive Framework political commitment?	☐ Yes ☐ No ☒ N/A Thailand has not yet established any legislations in this area as of September 2025.	
38	If your domestic transfer pricing framework allows the application of the simplified and streamlined approach for resident in-scope tested parties, does your jurisdiction respect the outcome of the application of such approach by another jurisdiction that is not a covered jurisdiction?	☐ Yes ☐ No ☒ N/A	

Safe Harbours and Other Simplification Measures

39

Does your jurisdiction provide for any safe harbours or other simplification measures in respect of certain industries, types of taxpayers, or types of transactions (not listed in other sections of this questionnaire)?

☐ Yes

☒ No

Other Legislative Aspects or Administrative Procedures

40

Does your domestic transfer pricing framework allow downward corresponding adjustments in the absence of a mutual agreement procedure (e.g. unilateral corresponding adjustments)?

☐ Yes

☒ No

Thailand's tax treaty network [\[LINK\]](#)

Thailand's MLI Position [\[LINK\]](#)

No. 12, Paragraph 2 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [\[LINK\]](#)

41	Does your domestic transfer pricing framework allow or require taxpayers to make year-end adjustments?	☐ Yes. Year-end adjustments are required. ☒ Yes. Year-end adjustments are allowed. ☐ No	Section 71 Bis of the Revenue Code [LINK] [LINK]
42	Does your domestic transfer pricing framework provide for secondary adjustments?	☒ Yes ☐ No	No.12 of the Notification of Director-General of the Revenue Department on Income Tax No. 400 (B.E.2564) dated 14 January 2021 [LINK]
Attribution of Profits to Permanent Establishments			
43	Which version of Article 7 of the OECD Model Tax Convention on Income and on Capital do your tax treaties contain?	☒ Article 7 as it read before 2010. ☒ If so, please indicate in how many treaties: 61 treaties ☐ Article 7 as it reads after 2010. ☐ If so, please indicate in how many treaties: ☐ Other (please provide additional details)	Thailand's tax treaty network [LINK] Thailand's MLI Position [LINK]

44	For tax treaties containing Article 7 as it read before 2010, does your jurisdiction apply the authorized OECD approach (AOA)?	☐ Yes ☒ No (please explain the approach used and which tax treaties are concerned)	Thailand's tax treaty network [LINK] Thailand's MLI Position [LINK]
45	Does your domestic transfer pricing framework contain specific guidance for the attribution of profits to permanent establishments of non-resident entities? If so, please provide a summary of the main features of this guidance.	☐ Yes, they follow the AOA as described in the 2008 Report on the Attribution of Profits to Permanent Establishments ☐ Yes, they follow the AOA as described in the 2010 Report on the Attribution of Profits to Permanent Establishments ☐ Yes, they do not follow the AOA (please provide a summary of the main features of these rules) ☒ No	Thailand's tax treaty network [LINK] Thailand's MLI Position [LINK]
Other Relevant Information			
46	Other legislative aspects or administrative procedures regarding transfer pricing	N/A	
47	Other relevant information (e.g. whether your jurisdiction is preparing new transfer pricing regulations, or other relevant aspects not addressed in this questionnaire)	N/A	

For more information, please visit: <https://www.oecd.org/en/topics/sub-issues/transfer-pricing/transfer-pricing-country-profiles.html>